

#	Case Name	Tentative
1.	PRIMARY CARE ASSOCIATES OF CALIFORNIA, INC. VS. BZ HEALTH NETWORK OF CALIFORNIA, INC. 2025-01451241	MOTION TO APPEAR PRO HAC VICE The applications of attorney Ricardo A. Acre to appear pro hac vice as counsel for Defendants BZ Health Network of California, Inc. and BZ Health of California in this matter is hereby GRANTED pursuant to California Rules of Court, rule 9.40.
2.	KOICK, INC. VS. EPLEX, INC. 2025-01491949	MOTION TO BE RELIEVED AS COUNSEL OF RECORD The motion of attorneys Samuel Yu and Daniel Yu and law firm Kahana & Feld LLP to be relieved as counsel for defendant Sunhwa Lee is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorneys will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney to give notice.
3.	GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC. 2023-01370855	1. MOTION FOR TERMINATING SANCTIONS Defendant's Motion for Terminating Sanctions is CONTINUED to 7/14/26. Plaintiff's counsel Dawn Smith is ordered to appear in person at the hearing. On 11/25/25, the Court found that Plaintiff Lucia Gunn had failed to cooperate with Defendant's deposition notice. Plaintiff had submitted a declaration dated 6/12/25 purportedly signed by Ms. Gunn which stated she was vocal and able to talk and make personal and legal decisions. Then, Plaintiff opposed the motion to compel deposition on grounds she was unable to communicate. Plaintiff's counsel now seeks to withdraw based in part on Plaintiff's inability to communicate. The 11/25/25 order required the parties to meet and confer to determine whether Plaintiff's deposition could be completed despite her medical condition. On 12/9/25, the Court found Plaintiff's medical declaration stated Plaintiff was unable to communicate, comprehend or manage her legal affairs. The Court awarded monetary sanctions for Plaintiff's failure to fully comply with its prior order to meet and confer. Plaintiff's counsel did not move for appointment of a legal guardian for the disabled Plaintiff. The Court is contemplating sanctions including but not limited to monetary sanctions against Plaintiff's counsel and issue or terminating sanctions for Plaintiff's conduct, including (1) presenting a false declaration to the Court, (2) failing to adequately meet and confer regarding the issue of Plaintiff's competence to testify, and (3) failing to promptly seek appointment of a guardian or

conservator to prosecute this action when Plaintiff's counsel learned Plaintiff was unable to participate.

The Court is also considering reporting Plaintiff's counsel Dawn Smith to the State Bar of California for possible violations of ethical rules including but not limited to violations of Rules of Professional Conduct 1.1 (Competence), 1.2 (Scope of Representation), 1.3 (Diligence), 1.4 (Communication with Clients), 1.16 (Declining or Terminating Representation) and 3.3 (Candor Toward the Tribunal).

Plaintiff's counsel is ordered to file a supplemental declaration, no later than 7/7/26, addressing the Court's concerns, including the following issues:

1. Did Plaintiff's counsel confirm that Plaintiff Lucia Gunn was able to communicate and competent to sue before filing this lawsuit?
2. When did Plaintiff's counsel first learn that Plaintiff Lucia Gunn was unable to communicate?
3. Did Plaintiff's counsel confirm that Lucia Gunn understood and executed the June 2025 declaration before submitting it to the Court?
4. Why has Plaintiff's counsel not filed an application to appoint a guardian or other legal representative to prosecute this action on Plaintiff's behalf?
5. Why did Plaintiff's counsel fail to comply with the Court's 11/25/25 and 12/9/25 orders including engaging in meet and confer attempts and filing a supplemental brief.

If Plaintiff's counsel believes they are unable to answer any of the foregoing questions based on attorney-client privilege, counsel shall promptly submit a request for in-camera review of specific evidence that counsel asserts is privileged. However, the Court expects Plaintiff's counsel Ms. Smith to **personally appear** at the hearing and be prepared to address each of the aforementioned issues in camera if necessary.

2. MOTION TO BE RELIEVED AS COUNSEL OF RECORD

The motion of attorney Dawn M. Smith to withdraw as attorney of record for Plaintiff Lucia Gunn is CONTINUED to 7/14/26. (Code Civ. Proc. § 284, CRC 3.1362.)

The supporting declaration states the client was personally served and a proof of service will be filed. However, as of five days before the hearing, no proof of service has been filed. Moreover, the declaration does not state whether personal service was effected on Plaintiff, who is apparently unable to communicate, or Plaintiff's husband, who was the main point of contact.

Moreover, Defendant has opposed the motion on grounds including undue delay and prejudice to Defendant. Plaintiff's counsel has not filed a timely reply brief.

Plaintiff's counsel is ordered to file a proof of service on the client and a reply to Defendant's opposition no later than 7/7/26.

3. MOTION FOR LEAVE TO FILE AMENDED COMPLAINT

Plaintiff's Motion to Amend Complaint is GRANTED.

Code of Civil Procedure section 473(a)(1) states, "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

"There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding." (*Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1081.)

Plaintiff seeks leave to amend to correct a typographical error regarding Plaintiff's age. Plaintiff incorrectly alleged at paragraph 95 of the Complaint that Plaintiff was 82 years old at the time of Defendants' conduct, when in fact Plaintiff was approximately 57 at the time of the events in the Complaint. Paragraph 4 of the Complaint stated Plaintiff was 59 years old. Plaintiff seeks leave to correct her age in paragraph 95.

Defendant contends it has suffered prejudice from litigating Plaintiff's elder abuse allegations, which are inapplicable given Plaintiff's true age. Defendant also contends Plaintiff unduly delayed in making the amendment.

Trial is set for 7/23/26.

Given that Defendant is already aware of the facts underlying the amendment, i.e. Plaintiff's true age, Defendant has failed to demonstrate prejudice from the amendment because the amendment will not substantially change any issues for trial. Therefore, the motion is granted. Plaintiff shall file and serve the proposed amended complaint within three court days.

4. MOTION TO EXCLUDE EXPERTS

Defendant's Motion to Exclude Expert Witnesses is CONTINUED to 7/14/26.

Defendant seeks to exclude Plaintiff's expert witnesses from testifying at trial because Plaintiff has failed to cooperate with the experts' depositions.

Defendant's counsel declares that Plaintiff filed expert declarations of Irina Lewis, RN, and Fadi Saba, M.D., in opposition to summary judgment. Plaintiff identified those experts as well as Lisa Contreras, RN, in her expert designation served on 5/22/25.

Defendant contacted Plaintiff's counsel multiple times and noticed the depositions of Plaintiff's experts, but Plaintiff's counsel did not cooperate or present the experts for deposition. (Jackson Decl., ¶¶ 4-9.) The day before the noticed depositions on 11/5/25, Plaintiff's counsel stated the depositions would need to be rescheduled, but Plaintiff's counsel did not respond to Defendant's request for alternate dates. (¶¶ 10-11.) Defendant's counsel declares they cannot adequately prepare for trial without taking Plaintiff's expert depositions. (¶ 16.)

Plaintiff filed an untimely opposition on 6/9/26, stating that after trial was continued following filing of the motion, they have offered expert deposition dates and Defendant has ample time to depose Plaintiff's experts before the expert discovery cutoff. Plaintiff's counsel declares they have proposed dates for the expert depositions.

The expert witness discovery cutoff is 15 days before the date initially set for trial. (Code Civ. Proc. § 2024.030.) On 1/14/26, the Court continued trial to 7/23/26 due to the Court's unavailability. The 1/14/26 order did not state the expert discovery cutoff was extended.

Defendant cites *Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1214, which holds:

"Misuse of the discovery process may result in the imposition of a variety of sanctions. These include payment of costs, sanctions barring the introduction of certain evidence, sanctions deeming that certain issues are determined against the offending party, and sanctions terminating an action in favor of the aggrieved party. (Code Civ. Proc., §§ 2023.020, 2023.030.) Misuse of the discovery process includes failing to respond or submit to authorized discovery, providing evasive discovery responses, disobeying a court order to provide discovery, unsuccessfully making or opposing discovery motions without substantial justification, and failing to meet and confer in good faith to resolve a discovery dispute when required by statute to do so. (Code Civ. Proc., § 2023.010, subds.

(d)-(i).) The court may impose sanctions ‘[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title....’ (Code Civ. Proc., § 2023.030.)”

Quoted portions of *Karlsson, supra*, 140 Cal.App.4th at 1214-1217 cited in Defendant’s brief at pp. 8-9 are not found in the cited portion of the *Karlsson* decision. The Court is unable to find the quoted language in a search of published California opinions. Defendant’s counsel shall be prepared to explain this discrepancy at the hearing including whether the mistake was the result of using generative A.I.

Nonetheless, California law is clear that it is within the Court’s discretion to exclude Plaintiff’s experts at trial based on Plaintiff’s failure to produce them for deposition. (See Code Civ. Proc. §§ 2023.010, 2023.030.) For instance, *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992 (cleaned up), holds, “The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt to tailor the sanction to the harm caused by the withheld discovery. The trial court cannot impose sanctions for misuse of the discovery process as a punishment. The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.”

It appears possible for Defendant to complete the expert witness depositions in advance of trial. However, Defendant is likely entitled to sanctions for Plaintiff’s counsel’s extensive delay and failure to cooperate. The parties shall diligently attempt to complete the expert depositions and shall submit supplemental briefs, not to exceed five pages, regarding (1) the status of the expert depositions and (2) whether and in what amount Plaintiff’s counsel should be sanctioned for failure to cooperate in expert depositions. Defendant’s supplemental brief shall be filed and electronically served on 7/1/26 and Plaintiff’s supplemental brief is due on 7/7/26.

If Plaintiff does not exercise extreme diligence in producing the expert witnesses, the Court intends to both exclude the expert witnesses and award monetary sanctions against Plaintiff’s counsel.